

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
PETER HUMPHREY GARCED,

Plaintiff,

-against-

THE CITY OF NEW YORK NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE
(TAX ID 938992) AND POLICE OFFICER "JOHN
DOE" 1-2 (the name "John Doe" being fictitious as the true
names are presently unknown), individually and in their official
capacity as New York City Police Officers,

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 20, 2014



ELLIE A. SILVERMAN, ESQ.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
PETER HUMPHREY GARCED
299 Broadway, 17th Floor
New York, NY 10007
212-233-6686
File No.: 13-3251

TO: **THE CITY OF NEW YORK**, Municipal Building • New York, New York 10007
NEW YORK CITY POLICE DEPARTMENT, 100 Church Street, New York, New York
10007;
POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992), One Police Plaza, New
York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
PETER HUMPHREY GARCED,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE
(TAX ID 938992) AND POLICE OFFICER "JOHN
DOE" 1-2 (the name "John Doe" being fictitious as the true
names are presently unknown), individually and in their official
capacity as New York City Police Officers,

Defendants,
-----X

Plaintiff, by his attorneys, **NOVO LAW FIRM, PC**, complaining of the Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER "JOHN DOE" 1-2**, respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **PETER HUMPHREY GARCED** was, and still is, an individual residing 22 Locust Street, #2A, County of Kings, State of New York.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.

3. Defendant **NEW YORK CITY POLICE DEPARTMENT** was, and still is, at all times relevant herein, a municipal corporation established and maintained by Defendant **THE CITY OF NEW YORK**.
4. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by Defendant **NEW YORK CITY POLICE DEPARTMENT**.
5. Defendant **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992)** was, and still is, at all times relevant herein, duly appointed and acting officer, servant, employee and agent of Defendant **NEW YORK CITY POLICE DEPARTMENT** a municipal agency of Defendant **THE CITY OF NEW YORK**.
6. Defendant **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992)** was, and still is, at all times relevant herein, a male New York City Police Officer, bearing Shield Number 11403, assigned to the 104th precinct located at 64-2 Catalpa Avenue, Queens, NY 11385.
7. On March 19, 2014, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiffs' demands for adjustment thereof was duly served on the Plaintiffs' behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time

provided by law, this action was commenced. A copy of the Notice of Claim is attached hereto and marked "EXHIBIT 1".

8. On June 30, 2014, pursuant to General Municipal Law § 50(h), a hearing was held for **PETER HUMPHREY GARCED** at the office of a designated agent regarding his automobile accident.

FACTS

9. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
10. On or about November 20, 2013, at approximately 9:00 P.M., Plaintiff **PETER HUMPHREY GARCED**, while laying on the ground in a semi-unconscious state at west bound Grand Central Parkway at or near its intersection of Jewel Avenue, County of Queens, City of New York, he became a victim of police misconduct, police brutality and malicious and sadistic force.
11. While Plaintiff **PETER HUMPHREY GARCED** was lawfully laying on the ground at or near aforementioned location, he was approached by Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, New York City Police Officers who, without reasonable suspicion, without probable cause and without any threat or reasonable belief of unlawful activity, proceeded to violently and unlawfully push, shove, slam onto the ground, assault, batter, and unlawfully arrest and handcuff Plaintiff without any indication as to what he had done wrong and/or what, if any, crime(s) he had committed.
12. Plaintiff **PETER HUMPHREY GARCED** was subjected to searches by Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**.

13. After being handcuffed, he continued to be a victim of malicious and sadistic force at the hands of **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2.**
14. At no time did Plaintiff **PETER HUMPHREY GARCED** disobey any command given by Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2.**
15. Upon information and belief, claimant **PETER HUMPHREY GARCED** was handcuffed, shackled and was taken to New York Hospital Queens where he remained handcuffed and shackled for the approximately nine (9) days.
16. Upon information and belief, Plaintiff remained handcuffed while receiving medical care.
17. Upon discharge, Claimant was taken to the Central Booking where he was fingerprinted, photographed then placed in a holding cell and was not given his medication(s).
18. Upon information and belief, while in Defendants' custody, Plaintiff **PETER HUMPHREY GARCED** told the Defendants that he needed medical attention.
19. While in the holding cell, Plaintiff complained of pain and injuries and pleaded and requested to be given medical attention, but with deliberate indifference to his serious medical needs, Plaintiff was deprived of medical attention.
20. Upon information and belief, while in the Defendants' custody, Plaintiff **PETER HUMPHREY GARCED** told the Defendants that he needed to take his prescribed medications.
21. Upon information and belief, while in the Defendants' custody, Plaintiff **PETER HUMPHREY GARCED** was denied his prescribed medications, despite his repeated requests.

22. Upon information and belief, while in the Defendants' custody, Plaintiff **PETER HUMPHREY GARCED** told the Defendants that he needed food and water.
23. Upon information and belief, while in the Defendants' custody, Plaintiff **PETER HUMPHREY GARCED** was denied food and water.
24. Upon information and belief, at no point did Plaintiff **PETER HUMPHREY GARCED** resist arrest or disobey the arresting officer's commands.
25. Upon information and belief, Plaintiff **PETER HUMPHREY GARCED** was not read his Miranda Rights.
26. Upon information and belief, at no point did Plaintiff **PETER HUMPHREY GARCED** was not allowed to make a phone-call despite his repeated requests to do so.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY THE CITY OF NEW YORK

27. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
28. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
29. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department, and through Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE 1-2**, had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen,

supervise and discipline employees and police officers, and of failing to inform the individual Defendant's supervisors of the need to train, screen, supervise and discipline said Defendant. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

30. Defendant **THE CITY OF NEW YORK** acting through its police department, and through Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE 1-2**, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff **PETER HUMPHREY GARCED** and which are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.
31. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY NEW YORK CITY POLICE DEPARTMENT

32. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
33. At all times material to this complaint, Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through its police department and through Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE 1-2**, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
34. At all times material to this complaint, Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
35. Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE 1-2**, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **NEW YORK CITY POLICE DEPARTMENT** being aware that the persistent and

substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff **PETER HUMPHREY GARCED** and which are officially tolerated by Defendant **NEW YORK CITY POLICE DEPARTMENT**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.

36. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992)
AND POLICE OFFICER JOHN DOE #1-2.

37. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
38. By their conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff **PETER HUMPHREY GARCED** in failing, refusing and/or withholding his medically necessary medication, medical attention and/or other medical needs and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants, Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID**

938992) AND POLICE OFFICER JOHN DOE 1-2, acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.

39. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
EXCESSIVE FORCE

40. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
41. Plaintiff was continuously subjected to multiple excessive unnecessary and unreasonable acts of physical force and to unnecessary, and to unreasonable and excessive terms and conditions of his detention, at the hands of defendants under the color of state law, in violation of his rights as guaranteed under the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 USC § 1983.
42. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
MALICIOUS ABUSE OF PROCESS

43. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
44. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** issued legal process to place Plaintiff **PETER HUMPHREY GARCED**, under arrest and subject him to prosecution.
45. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** arrested and participated in prosecuting Plaintiff **PETER HUMPHREY GARCED**, in order to obtain collateral objectives outside the legitimate ends of the legal process.
46. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** arrested and participated in prosecuting Plaintiff **PETER HUMPHREY GARCED** in order to obtain the collateral objective of intimidating Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of NYPD misconduct and excessive force.
47. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** acted with intent to do harm to Plaintiff **PETER HUMPHREY GARCED** without excuse or justification.
48. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic

injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
DERELICTION OF DUTY. DEPRAVED INDIFFERENCE
and FAILURE TO INTERCEDE

49. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
50. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** were under a duty of safeguarding the public and ensuring the appropriate execution of the New York Police Department's role. Plaintiff **PETER HUMPHREY GARCED** duly relied on Defendants' fulfillment of their policing duties.
51. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** had an affirmative duty to intercede when Plaintiff **PETER HUMPHREY GARCED's** constitutional rights were being violated in Defendants' presence.
52. At the time of the incident, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, were observing and aware of the wrongful acts against Plaintiff **PETER HUMPHREY GARCED**.
53. At the time of the incident, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, neglected to intervene on Plaintiff

PETER HUMPHREY GARCED's behalf in dereliction of their duty to Plaintiff and in depraved indifference to Plaintiff's well-being.

54. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** violated Plaintiff **PETER HUMPHREY GARCED**'s constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
55. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** had an affirmative duty to intercede when Plaintiff **PETER HUMPHREY GARCED**'s constitutional rights were being violated in Defendants' presence by falsifying evidence of probable cause to arrest and prosecute Plaintiff.
56. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

57. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
58. By the actions described above, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID**

938992) AND POLICE OFFICER JOHN DOE #1-2, caused Plaintiff **PETER HUMPHREY GARCED** to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.

59. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
MALICIOUS PROSECUTION

60. Plaintiff repeats and reiterates the allegation set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
61. By the actions described above, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, under color of state law, maliciously prosecuted Plaintiff without probable cause, illegally, without any proper claims and without any right or authority to do so. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his rights as guaranteed by 42 USC §1983 and by the laws of the constitution of the State of New York.
62. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND**

POLICE OFFICER JOHN DOE #1-2, arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process.

63. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged or injured.

AS AND FOR A NINTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY

64. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
65. Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, are vicariously liable to Plaintiff **PETER HUMPHREY GARCED** for the individual Defendants', **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992)** AND **POLICE OFFICER JOHN DOE #1-2**, common tort of battery via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1) (b).
66. Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992)** AND **POLICE OFFICER JOHN DOE #1-2**, committed a battery on Plaintiff **PETER HUMPHREY GARCED** by him being grabbed, punched, kneed, kicked, pushed, thrown down, hit, handcuffed, patted down, thrown into a van, fingerprinted and searched. The deprivation of food, water and sanitary conditions while in custody, was harmful, un-consented, and unjustified and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.

67. That by reason of the battery, Plaintiff **PETER HUMPHREY GARCED** was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendants' actions.
68. That Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** committed battery by withholding medical attention, necessary medication and refusal to follow doctor's instructions to visit the following day, these withholdings were harmful, un-consented, and unjustified and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
69. That by reason of the battery, Plaintiff aggravated and exacerbated his injuries, specifically to his eye socket/orbital bone.
70. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS
UNDER NEW YORK STATE LAW
VIA ASSAULT

71. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
72. That on the aforementioned date, time and place, Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** committed the tort of assault against Plaintiff **PETER HUMPHREY GARCED** by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing,

Defendant violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law

73. That Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** is vicariously liable to Plaintiff **PETER HUMPHREY GARCED** for the individual Defendants' **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992)** **AND POLICE OFFICER JOHN DOE #1-2** common law tort of assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
74. That by reason of the aforesaid committed by Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, Plaintiff **PETER HUMPHREY GARCED** suffered and continues to suffer physical injury and that he was otherwise damaged.
75. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A ELEVENTH CAUSE OF ACTION
NEGLIGENCE

76. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
77. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, KINGS COUNTY DISTRICT ATTORNEY CHARLES HYNES, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER**

JOHN DOE #1-2 negligently caused injuries and otherwise damaged Plaintiff **PETER HUMPHREY GARCED**. The acts and conduct of Defendants were the direct and proximate cause of injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

78. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TWELFTH CAUSE OF ACTION
VIOLATION OF SUBSTANTIVE DUE PROCESS

79. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
80. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff **PETER HUMPHREY GARCED** that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
81. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, individually and collectively are liable for abuses against Plaintiff **PETER HUMPHREY GARCED** that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
82. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** individually and collectively are liable for abuses

against Plaintiff **PETER HUMPHREY GARCED** that shock the conscience in violation of New York law, rules and regulations.

83. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION AND TRAINING

84. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
85. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PETER HUMPHREY GARCED** a duty to manage, control, and supervise Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2.**
86. Defendants **THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT** negligently hired, screened, retained, disciplined, supervised and trained Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2.**
87. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PETER HUMPHREY GARCED** a duty to hire qualified and sufficient personnel in connection with the operation, management control, teaching at and/or supervision of Defendants **POLICE**

OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2.

88. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PETER HUMPHREY GARCED** a duty to train their employees so as to enable them to properly maintain order and control.
89. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PETER HUMPHREY GARCED** a duty to promulgate proper and/or adequate rules and regulations governing the proper care, guidance and/or supervision to be provided and rendered by those agents, servants, officers and/or employees hired as New York City Police Officers.
90. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PETER HUMPHREY GARCED** a duty to provide a safe and proper environment.
91. At all times herein mentioned, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **PETER HUMPHREY GARCED** a duty to prevent from being assaulted and battered while in their custody and control.
92. At all times relevant hereto, Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** and/or said Defendants' agents, servants, employees and/or licensees were, jointly, severally and concurrently, negligent, careless and reckless in individually and collectively breaching each and every duty owed to Plaintiff **PETER HUMPHREY GARCED**.

93. The aforesaid occurrence was caused wholly and solely by reason of the negligence of Defendants **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** and/or said Defendants' agents, servants, employees and/or licensees, without any fault or negligence on the part of Plaintiff **PETER HUMPHREY GARCED** contributing thereto.
94. Defendant **THE CITY OF NEW YORK**, and **NEW YORK CITY POLICE DEPARTMENT** and through Defendants **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2**, had *defacto* to policies, practices, customs and usage, which were a direct and proximate cause of the unconstitutional conduct alleged herein.
95. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

96. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
97. Defendants **THE CITY OF NEW YORK**, **NEW YORK CITY POLICE DEPARTMENT**, **POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** negligently caused emotional distress and damage to Plaintiff **PETER HUMPHREY GARCED**. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of

the State of New York, and under the Charter, laws, rules and regulations of the City of New York.

98. As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL HARM

99. Plaintiff **PETER HUMPHREY GARCED** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
100. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER JOHN DOE #1-2** knowingly, unreasonably and maliciously sought to disturb Plaintiff **PETER HUMPHREY GARCED** by their individual and collective outrageous conduct.
101. This conduct includes, without being limited to, assaulting and battering Plaintiff **PETER HUMPHREY GARCED** while he was bound by handcuffs in their custody; unreasonably detaining him; depriving him of food, water and proper medical care and subjecting him to multiple unreasonable searches and other intimidation tactics and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.
102. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992) AND**

POLICE OFFICER JOHN DOE #1-2 have caused Plaintiff **PETER HUMPHREY GARCED** humiliation, anxiety, fear, sleeplessness and severe distress.

- 103.** As a result of the foregoing, Plaintiff **PETER HUMPHREY GARCED** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
November 20, 2014

Yours, etc.



ELLIE A. SILVERMAN, ESQ.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
PETER HUMPHREY GARCED
299 Broadway, 17th Floor
New York, NY 10007
212-233-6686
Our File No. 13-3278

ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New YORK affirms the following to be true under the penalties of perjury:

I am an attorney at NOVO LAW FIRM, PC, attorneys of record for Plaintiff, **PETER HUMPHREY GARCED**, in the action within. I have read the annexed **Verified Complaint** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
November 20, 2014



ELLIE A. SILVERMAN, ESQ.

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

PETER HUMPHREY GARCED,

Plaintiffs,

-against-

THE CITY OF NEW YORK NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
DANIEL MCGUIRE (TAX ID 938992) AND POLICE OFFICER "JOHN DOE" 1-2 (the
name "John Doe" being fictitious as the true names are presently unknown), individually and in
their official capacity as New York City Police Officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Novo Law Firm, PC
Attorneys for Plaintiff
299 Broadway, 17th Floor
New York, New York 10007
212-233-6686

ATTORNEY'S CERTIFICATION. Upon reasonable inquiry under the circumstances, I certify that the
presentation of these papers or contentions therein is made in good faith and is not frivolous.

Dated: November 20, 2014


Ellie Silverman, Esq.

TO: **THE CITY OF NEW YORK**, Municipal Building • New York, New York 10007
NEW YORK CITY POLICE DEPARTMENT, 100 Church Street, New York, New York
10007;
POLICE OFFICER DANIEL MCGUIRE (TAX ID 938992), One Police Plaza New
York, NY